

TAB 4



Board of Education Report

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Rescission of the LAUSD Vaccination Requirement

September 26, 2023

Office of the Superintendent

Action Proposed:

Authorize the rescission of the Los Angeles Unified School District's ("LAUSD" or "District") COVID-19 vaccination requirement.

Background:

On March 4, 2020, Governor Newsom proclaimed a state of emergency within the State due to the threat posed by the Novel Coronavirus (COVID-19) and the Los Angeles County Health Officer issued a Declaration of Local Health Emergency due to the introduction of the COVID-19 cases to the County. Subsequently, on March 13, 2020, LAUSD closed all of its facilities for in-person District administration and operations and school instruction, resulting in the implementation of a distance learning program and remote working through most of the 2020-21 school year. In April 2021, the District began reopening school facilities for in-person learning.

In response to the COVID-19 pandemic, the District implemented a high standard of multi-layered safety measures to effectively mitigate the spread of COVID-19, including testing, masking, ventilation, screening, high quality sanitation measures, and the requirement for all employees and eligible students to be vaccinated. On August 13, 2021, the District issued a directive that all employees be fully vaccinated. The directive required employees to show proof of such by October 15, 2021. The requirement extended to all adults who were on LAUSD campuses (charter school employees for co-located sites; vendors; contractors; volunteers). Following this, the District issued an updated vaccination schedule to employees requiring that all employees receive their first vaccine by October 15, 2021, and their second vaccine by November 15, 2021. Completed vaccine records were required to be uploaded for verification. Separately, the District mandated, but did not enforce a student vaccination requirement in alignment with the state and court rulings. On November 16, 2021, the Board of Education (Board) affirmed the District's COVID-19 vaccination requirement. In addition, the Board declared that all COVID-19 health and safety policies and procedures were applicable to charter schools on District sites, contractors, volunteers, and other adults providing services on District facilities. On December 14, 2021, the Board extended the COVID-19 vaccination requirement as a policy applicable to all charter schools authorized by the LAUSD Board of Education regardless of charter school location.

On February 28, 2023, California's state of emergency for COVID-19 ended. On February 3, 2023, the California Department of Public Health ("CDPH") announced that it is not exploring emergency rulemaking to add COVID-19 to the list of required school vaccinations and any changes to required K-12 immunizations are properly addressed through the legislative process. Instead, the CDPH issued guidance intended to mitigate the impact and spread of COVID-19 to support safe, in-person learning in TK-12 school settings. CDPH's guidelines are in alignment with the state's SMARTER (Shots, Masks, Awareness, Readiness, Testing, Education, Rx) plan to provide resources to support the goal of preventing broad disruption to in-person learning.

Similarly, on February 1, 2023, the Los Angeles City Council Emergency Order ended. On March 31, 2023, the Los Angeles County Board of Supervisors ended the County's COVID-19 emergency declarations. The termination of the emergency declaration ended both the County's Proclamation of Local Emergency and Declaration of Local Health Emergency for COVID-19 which have been in place since March 2020. With the end of the Los Angeles County COVID-19 emergency declarations, the Los Angeles County Department of Public Health ("LACDPH") aligned its safety measures with federal and state COVID-19 guidance, while continuing to require a few measures at educational institutions to reduce COVID-19 related disruptions.

At worksites and educational settings, COVID-19 isolation and notification guidelines for staff are set by CAL/OSHA. Current Los Angeles County Department of Public Health and CAL/OSHA recommendations are as follows: School employees who have tested positive must isolate at home for at least five days and can only return to their worksite between days six and ten if they are fever-free and wearing a well-fitting mask indoors and around others outdoors except when eating or drinking. Students who have tested positive are also required to isolate at home for five days and, if returning to school between days six and ten, should wear a well-fitting mask when indoors and around others outdoors except when eating or drinking. Students returning between day six and ten may unmask if they have two sequential negative tests taken at least a day apart. Schools are required to notify employees and are recommended to notify students who are close contacts of a confirmed case and provide exposed workers with free testing.

In addition to the setting aside of local and state emergency declarations, the Biden administration ended the Coronavirus Public Health Emergency Declaration on May 11, 2023. On the same month, the World Health Organization Director General determined that COVID-19 no longer constitutes a public health emergency of international concerns.

Presently, LAUSD's COVID-19 vaccination requirement remains in effect with 100% of its employees reporting to District sites fully vaccinated pursuant to the requirements instituted in August 2021. Employees who have reasonable accommodations pursuant to medical reasons or disability, or based on sincerely held religious beliefs have been accommodated at the District's virtual academies if the employee is able to accomplish all essential job duties. Employees have also been granted a reasonable accommodation if the employee has accrued benefit time and/or the ability to seek a permissive leave of absence, in accordance with legal requirements.

At the time of implementation of the District's COVID-19 vaccination requirement, Los Angeles Unified schools had been closed for full time in-person learning for 17 months due to the rapidly changing, deadly virus. The intent with re-opening schools was to preserve in-person learning in the safest environment possible. At the time, even a modest number of positive cases of COVID-19 could have prompted school and classroom closures. Because COVID-19 vaccination reduced transmission and disease severity, it made sense to have a vaccination requirement-to keep schools open for in-person learning.

As a testament to the incredible power of vaccinations and the advancements of science, COVID-19 has now entered the endemic phase. This means that the virus is here to stay, but it is not spreading at a rapid enough pace to overwhelm hospital systems. This also means that while there will continue to be surges of COVID-19, it has entered a state of stability and predictability that comes with other viruses such as RSV and the Flu. In addition, we can use mitigation measures such as encouraging vaccination, masking, testing and educating about good hygiene practices during times when there is a high prevalence of respiratory viruses such as COVID-19. The science has not changed. Vaccines are still safe and effective. We continue to encourage everyone to stay updated on all vaccinations. However, we no longer need a COVID-19 vaccine requirement to keep schools open for in-person learning.

Expected Outcomes:

If the Board approves the rescission of the COVID-19 vaccination requirement, the District will cease requiring proof of vaccination for new hires, contractors, volunteers, third-party facilities users, and other service providers before they are permitted to provide instructional and other services to schools, students, and offices.

The District will continue to strongly encourage vaccinations for employees, families and students. In addition, in collaboration with our communications team, our medical team will continue to educate our school community about proper hygiene practices and tools such as masking and testing during times of high transmission of respiratory viruses such as COVID-19, Flu and RSV.

The District will continue monitoring the state of COVID-19 and other viruses. Should health conditions necessitate a revisiting of the COVID-19 vaccination requirement, the District will evaluate and bring any recommendation to the Board for consideration.

Board Options and Consequences:

A “yes” vote will rescind the COVID-19 vaccination requirement.

A “no” vote will maintain the COVID-19 vaccination requirement.

Policy Implications:

The District’s COVID-19 Containment, Response and Control Plan will be amended to remove the requirement for proof of vaccination.

Budget Impact:

The proposed action in and of itself does not have a budget impact.

Student Impact:

The health impact of COVID-19 on healthy children is similar to Flu and RSV. We do not have a vaccine requirement for the Flu and similar to the Flu, we can use mitigation measures such as encouraging vaccination, masking, testing and educating about good hygiene practices during times when there is a high prevalence of respiratory viruses.

Equity Impact:

Not applicable.

Issues and Analysis:

Los Angeles Unified continues to be committed to providing clean, maintained and well-ventilated school facilities to reduce the spread of respiratory infections and protect students and staff from exposure to other air pollutants including, airborne allergens, wildfire smoke, and transportation related emissions.

The District will continue to maintain and clean schools and offices so they are safe and healthy learning environments for students and workplaces for employees. Facilities Maintenance & Operations (M&O), as part of their quality assurance efforts, regularly surveys and recommends improvements for each school’s and administrative facility’s custodial program, in addition to conducting inspections and deep cleaning on an annual basis.

To promote optimal ventilation, all HVAC systems are designed to incorporate outdoor air to the greatest extent possible. HVAC repairs, always a critical service call, are elevated to urgent status, and should there be an

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interruption to HVAC service, portable air conditioning units, fans and/or high-efficiency particulate air (HEPA) purifiers are deployed to affected spaces. The District maintains an inventory of more than 1,650 portable HEPA air cleaning devices and more than 2,800 portable air conditioning units for rapid deployment to classrooms where an HVAC service call has been initiated and fans are not moving fresh air or fans are moving but not providing cool air. The District's inventory will continue to be replenished and/or added to as needed.

Should the Board lift the vaccination mandate, the pending certificated and classified employees who are currently ineligible to perform their duties could be eligible for assignment, and previously separated employees could be eligible to reapply.

Attachments:

None.

Informatives:

None.

Submitted:

09/14/23

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